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CAAP-26-_____

IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors

Plaintiff,

vs.

NIKODEM PIKOR,

Defendant.

NIKODEM PIKOR

Counterclaim Plaintiff,

vs.

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors

Counterclaim Defendant.

Civil No. 1RC19-1-0003776

APPEALED FROM :

(1) FINDINGS OF FACT, CONCLUSIONS OF LAW, AND ORDER GRANTED PLAINTIFF/COUNTERCLAIM DEFENDANT'S MOTIONS FOR DIRECTED VERDICT;

(2) ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF AND COUNSERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. MOTION FOR ATTORNEYS' FEES AND COSTS; and

(3) JUDGMENT

[Caption Continued on Next Page]

NIKODEM PIKOR,

Third Party Plaintiff,

v.

THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation,

Third Party Defendant.

DEFENDANT AND COUNTERCLAIM/THIRD-PARTY PLAINTIFF NIKODEM PIKOR'S NOTICE OF APPEAL FROM: (1) FINDINGS OF FACT, CONCLUSIONS OF LAW, AND ORDER GRANTED PLAINTIFF/COUNTERCLAIM DEFENDANT'S MOTIONS FOR DIRECTED VERDICT; (2) ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF AND COUNSERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. MOTION FOR ATTORNEYS' FEES AND COSTS; (3) JUDGMENT

EXHIBITS A-C

CERTIFICATE OF SERVICE

REVERE & ASSOCIATES
A Limited Liability Law Company

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Attorneys for Defendant/Third-Party Plaintiff/Appellant
NIKODEM PIKOR

CAAP-26-_____

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STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors

Plaintiff,

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NIKODEM PIKOR,

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THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation,

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(2) ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF AND COUNSERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. MOTION FOR ATTORNEYS' FEES AND COSTS; and

(3) JUDGMENT

[Caption Continued on Next Page]

DEFENDANT AND COUNTERCLAIM/THIRD-PARTY PLAINTIFF/APPELLANT NIKODEM PIKOR'S NOTICE OF APPEAL FROM: (1) FINDINGS OF FACT, CONCLUSIONS OF LAW, AND ORDER GRANTED PLAINTIFF/COUNTERCLAIM DEFENDANT'S MOTIONS FOR DIRECTED VERDICT; (2) ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF AND COUNSERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. MOTION FOR ATTORNEYS' FEES AND COSTS; (3) JUDGMENT

Defendant, Counterclaim/Third-Party Plaintiff, Appellant NIKODEM PIKOR, (hereinafter "Plaintiff"), by and through his attorneys, Revere & Associates, LLLC, pursuant to Section 641-1 of the Hawaii Revised Statutes and Rules 3 and 4 of the Hawaii Rules of Appellate Procedure, hereby gives notice that he appeals to the Intermediate Court of Appeals of the State of Hawaii: Defendant and Counterclaim/Third-Party Plaintiff Nikodem Pikor's Notice of Appeal From: (1) Findings of Fact, Conclusions of Law, and Order Granted Plaintiff/Counterclaim Defendant's Motions For Directed Verdict; (2) Order Granting In Part and Denying In Part Plaintiff and Counserclaim Defendant Association of Apartment Owners of Marine Surf Waikiki, Inc. Motion For Attorneys' Fees and Costs; (3) Judgment, attached hereto as Exhibit A-C. .

DATED: Honolulu, Hawaii, September 4, 2026.

/s/ Amanda L. Dutcher
TERRANCE M. REVERE
AMANDA L. DUTCHER
Attorneys for Defendant/
Third-Party Plaintiff/Appellant
NIKODEM PIKOR